

ORAL TRADITIONS OF THE
TŁıCHQ

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The views expressed in this paper are my own, and based entirely on information in the public record. In no way do they reflect the views of the Tłıchǫ Nation.

GLOSSARY¹

Do ik'oo elii - Medicine man.

gots'èke – wife

Kago ti deh - Marion River

Indahk'eti - Marian Lake

ink'ondeh - powerful medicine.

TłichQ - Dogrib (person),

TłichQ got'ii - Dogrib people

WoyiP'fata - Went-Inside-Mountain

¹ Tłicho Yatıi Enıhtı'e (A Dogrib Dictionary) (1996) Dogrib Divisional Board of Education, NWT, Rae-Edzo

Chapter 1

INTRODUCTION

The Purpose of this paper is to touch on the importance of oral history to the Tłıchǫ Nation, and to assess the place of culture in the courts. To this end I have adapted a key story from the oral tradition, the story of *Wezıtsatla* (Went-Inside-Mountain), into a story book: *How the Hozıı (Barrenlands) came to be and how the Wezıtsatla (Went-Inside-Mountain) got its name*. Accompanying the *The Story Book of Wezıtsatla* is a paper which puts the story in its appropriate cultural context and explains the continuing importance of oral traditions to the Tłıchǫ today. As this story was published, I will use it against the backdrop of *Baker Lake*² and *Delgamuukw*³. Both these cases drew heavily on *Southern Rhodesia*,⁴ early Privy Council decided in 1919.

There are three parts to this paper. The first section consists of a brief overview of the *Wezıtsatla* as told to anthropologist June Helm in 1962. This leads into a brief history of the Tłıchǫ people focusing on the importance of the oral tradition to their cultural and social self-identification. Finally, given the centrality of the oral tradition to Native life, we will outline its increasing legal significance – particularly in the arena of land claims – over the past decade.

The oral tradition, as it evolves and is augmented over time, serves as a tangible connection to the past, and a record of the evolution of Native cultures and

² *Baker Lake v. Minister of Indian Affairs* (1979), 107 D.L.R. (3d) 513 (E.C.A.) [hereinafter *Baker Lake*].

³ [1997] 3 S.C.R. 1010 [hereinafter *Delgamuukw*].

peoples. It memorializes sites, events and people who are central to group identity, and it often recasts them – subtly or significantly – over time. This exposition of the story of *Wex̱iṯisatla* will underline the challenges that face the efforts of Canadian courts to grapple with this often unwieldy tool, and in the process “fix” the oral tradition into legal evidence.

⁴ *Re Southern Rhodesia*, [1919] A.C. 211 [hereinafter *Re Southern*].

Chapter 2

THE STORY OF WEZITISATLA (WENT-INSIDE-MOUNTAIN)

The story of *Wezitisatla* was first recorded by anthropologist June Helm⁵ in the summer of 1962. Vital Thomas, a Tłıchǫ man, related the story to her, and she included it in her compilation of *Tales from the Dogribs* published by *The Beaver* Canada's History magazine in 1966. Helm, who spent over twenty-five years studying the culture and social relations of [Tłıchǫ] communities, saw tales like *Wezitisatla*, which records how a mountain got its name, as central to the Tłıchǫ worldview.⁶ The tales of the Tłıchǫ deal, Helm states, with the “mythological past, telling us how things came to be. Others recount in dramatic perspective critical times of tribal history. Others tales tell us how things are, the nature of animals and of man and of magic medicine, and of how things should be – demonstrating proper Dogrib manners and morals.”⁷ The stories Vital Thomas told Helm in 1962 bring insight into how oral traditions shaped his culture and how those traditions inform the history and inner workings of the Tłıchǫ society as a whole.

Wezitsatla, can mean “Got-in-the-Mountain” or “Went-Inside-Mountain” or “Where Someone Went Inside It”. The word refers to both the physical place – the mountain that bears that name – and the story associated with it. This is a

⁵ See, *AAA Past President Helm Passed Away Feb 5*, online: American Anthropological Association <http://www.aaanet.org/helms_june.htm>

⁶ *1962 Dogrib Tea Dance Biographies* online: Prince of Wales Northern Heritage Centre Homepage <<http://pwnhc.learnnet.nt.ca/exhibits/teadance/bios.html>>

⁷ J. Helm, & V. Thomas, *Tales From The Dogribs The Beaver* Autumn Issue (1966) at 16-20.

common aspect of the oral tradition in general: places themselves become aspects of stories, and the action that occurred there becomes synonymous with the place where it happened. This sort of intermingling, the creation of impromptu memorial sites that bind a place with what happened there can be seen in a variety of more modern spaces and associations: the Alamo, Little Big Horn, Auschwitz, Ellis Island. These places are inseparable from what happened there. Likewise, in the oral tradition of the Tłıchǫ, the mountain, what happened there, and what lingers there today serve to bind the Tłıchǫ more closely to the land of which they are literally a part.

Briefly, the story of *Wezitsatla* recounts how a mountain north of Marian Lake received its name. It is a story of a wife, escaping from her jealous husband who is a powerful medicine man. The husband finds her with a young man inside the mountain where they have gone to hide from him. Frustrated in his attempts to roust them from their hiding place – he can hear them moving about and whispering under the surface, but he cannot get to them – the husband curses the couple to remain forever locked inside the mountain where their whispering can still be heard today.⁸

The story varies over time, and there are variations from the main story of a jealous husband and unfaithful wife recorded by Helm in 1962. One version of the story of *Wezitsatla* has only heroes and none of the moral ambiguity of the dominant narrative. In the alternative version of the story, a powerful medicine man uses the mountain to protect a group of Tłıchǫ who are “hiding from a raiding party of . . . Yellowknife warriors”. The medicine man lifts the mountain up and covers the Tłıchǫ fugitives with it, providing them shelter from their

⁸ *Ibid.* at 18.

enemies. According to this version, the whispering heard on the mountain today are the voices of the medicine man's wife and the young man she ran away with.

Although radically different, the two stories have marked similarities: the role of a powerful medicine man in sealing or placing people within the mountain; the role of the mountain as a place of sanctuary in a time of danger; the melding of people with the land (in both versions the people who go into the mountain literally become a part of it); and the lingering evidence that something important happened in that place (the whispering). Despite the moral ambiguity of the first version of the story, it is the one that is more widely known: it is the version that my uncle told me when I was a young girl.

Wezitsatla is only one of many stories passed from generation to generation of the Tłı̨chǫ nation. A few more examples of stories associated with specific geographical locations such as the *We k'e dah tla ts'e dah* (no known translation of the word) is a flat topped located north of Rae, on Marion Lake a landmark associated with the legend of Yamoze. The *Ts'o kw'e* (muskeg rock) is a hill said to be powerful, in the old days people would climb to the top of the hill and construct a scaffold, enduring three days and nights to receive powerful visions.⁹ These stories serve to bind the people more closely to the land, to give them a sense of belonging to it and in it, to explain their place in the march of time and history.

⁹ T. Andrews, *Yamoria's Arrows: Stories, Place-Names and the Land in Dene Oral Tradition*, (1990) National Historic Parks and Sites Northern Initiatives Canadian Parks Service Environment Canada, at 28.

Chapter 3

THE TLİCHQ

The Past

The TłıchQ have always lived in what is today the Northwest Territories (NWT), near the northern tip of the Great Slave Lake. Historically and continually, the TłıchQ's territory has been defined as the area between the Great Slave and Great Bear Lakes – a region of sub-arctic terrain with forests of spruce, willow, birch and muskeg.¹⁰ In 1921, Dogrib Treaty 11, signed by Chief Monfwi, affirmed the TłıchQ's continuous inhabitation of that area to the satisfaction of the Canadian government.

Socially, the TłıchQ are much the same as they were at the turn of the last century. For eighty-three years traditional values and gender roles in the Dogrib society have largely stayed the same. The relationship of men and women is largely patriarchal: men “depended on women to prepare food, make clothing and keep shelter as well as raise children.” The men would Hunt and provide shelter. Women's roles, unlike those of men, are flexible: they often do “men's” work, but men rarely do “women's” work.¹¹ The role of Elder is indifferent to gender. Elders of both genders embody “the ideals of a good Dene¹²: strong

¹⁰ J. Helm & N. Lurie, *The Subsistence Economy of the Dogrib Indians of Lac La Martre in the Mackenzie District of the Northwest Territories* (Report) (1961) Northern Co-ordination and Research Centre, Department of Northern Affairs and National Resources, Ottawa, at 2.

¹¹ C. MacQuarrie, *Participatory Models of Government for NWT Women: Interim Report*. Strategic Alliance, (NWT: 1993) at p 4.

¹² The Dene, “inhabit the great boreal forest and tundra regions...made up several different languages of the Athapaskan language groups and are composed of several different sub-

values, a sense of responsibility for the community, respect for all,” and self-reliance.¹³

According to Alice Legat, whose research on place names – including *Wezitsatla* – suggests that place names contribute significantly to the Tłıchǫ understanding of their place in the region and their sense of belonging to the region, “local people have strong cultural and family tradition that is evident in everyday life”.¹⁴ The cement that binds the community together is the oral tradition. Tłıchǫ culture, as transmitted from Elders to community members, and as discussed and interpreted by them, provides a sense of obligation and belonging that reinforces the bonds of interdependence created by life in a particularly harsh climate. Tłıchǫ culture has always been strong among the people, and the stories they tell about themselves keep that culture vibrant and vital.

The Present

On August 25th, 2003, the Tłıchǫ Elders signed their final *Land Claim and Self-government Agreement* with the Canadian government.¹⁵ The *Final Agreement* will come into effect when both levels of government pass the agreement through legislation. The Territorial government voted unanimously to approve the agreement on October 11, 2003.¹⁶ Members of the Federal government in

groups: Chipewyan, Dogrib, Gwich'in, Sahtu Dene, Slavey, and Yellowknife. See online: The Canadian Canoe Museum. <<http://www.canoemuseum.net/heritage/dene.asp>>

¹³ Ibid. at 5

¹⁴ A. Legat, *Habitat of Dogrib Traditional Territory: Place Names as Indicators of Biogeographical Knowledge* Annual report, (1998) at p 4

¹⁵ (Queen's Printer, 2003) [hereinafter *Final Agreement*].

¹⁶ CBC North, *Dogrib land and government deal OK'd by legislature* (Oct 14th 2003) online: CBC North <<http://north.cbc.ca/regional/servlet/View?filename=octr13tlchosign13102003>> (Last accessed 12 Nov 2003)

Ottawa are currently drafting legislation to be introduced there in the near future.¹⁷

The *Final Agreement* embraces all of the traditional territory of the Tłı̨chǫ Nation, an area known as the North Slave Region of the Northwest Territories. Within this area there are about 2300¹⁸ Tłı̨chǫ in four communities: Behcho Ko (Rae-Edzo), Gameti (Rae Lakes), Wha Ti (Lac La Martre) and Wekweti (Snare Lake).

Traditionally, the Tłı̨chǫ economy was based on fur trading and subsistence hunting. Over the years the traditional economy has slowly declined, moving into retail, accommodation/ food services, transportation/ communication.¹⁹ All of these developments are supported by a combination of income from natural resource exploitation (gold and copper mining for the most part before 1990) and direct government assistance grants. The recent discovery of diamonds on Tłı̨chǫ land has opened up opportunities for economic development, and efforts are being made to channel income from land-use agreements with the various diamond mining concerns into sustainable economic development projects; but the fact remains that much of the income and economic impetus for the North Slave region is still based on the exploitation of finite natural resources.²⁰

The Future

The Tłı̨chǫ Nation awaits the implementation of its own Constitution and the establishment of its own government as mandated by the Final Agreement. "The

¹⁷ Government of Canada, Department of Indian and Northern Affairs, News Release: *Historic Tłı̨chǫ land Claim and Self-Government Agreement Signed Today*, (August 25th 2003), online: DIAND <http://www.ainc.gc.ca/nr/prs/m-a2003/2-02364_e.html> (last accessed 14 Nov 2003).

¹⁸ Bureau of Statistics Government of the Northwest Territories (June 2003) online: GNWT <<http://www.stats.gov.nt.ca/Stainfo/Generalstats/bythenumbers/2003/2003bms/btm.html>>

¹⁹ DIAVIK Diamond Mines, Inc., *Diavik Diamonds Project Environmental Assessment Executive summary*. Yellowknife: n.d.).

²⁰ Diavik Diamond Mines Inc *Rae-Edzo Socio-Economic Profile*. (1997) Yellowknife, NWT at p 6-5

main goal of the Tłıchǫ Agreement is to promote and protect Tłıchǫ heritage, culture and way of life. The Tłıchǫ governing bodies will be able to operate independently from the Canadian and Territorial government, exercising their legislative authority, and creating institutions allowing a greater control over lands and resources in the Tłıchǫ settlement area.²¹

As the Tłıchǫ prepare for the future, they continually integrate their heritage, culture and way of life into the complexities of life in the twenty-first century. The great Chief Jimmy Bruneau of the Tłıchǫ spoke of the future of a strong culture, mixing traditions with a modern governmental structure, bringing together two worlds to the benefit of both:

“I have asked for a school to be built...on my land...and that school will be run by my people, and my people will work at that school and our children will learn both ways, our way and the whitemen’s way.”²²

²¹ *Ibid.* at note 14.

²² J. Martin, *Strong like two People*. Dogrib Divisional Board of Education, Rae/Edzo NWT(1991) at 73

Chapter 4

ORAL TRADITIONS OF THE TŁİCHQ

The schools are the first aspects of local government over which the TłìchQ assumed partial control in 1972 and full control once the land claims and self-government is implemented. The curriculum combines the best of both western and TłìchQ cultures. It teaches western subjects with a particular emphasis on adapting them to traditional cultural needs. It teaches English, but the TłìchQ language is also integrated into the curriculum. There is a traditional knowledge component – including trips into the bush – to teach young TłìchQ skills even their parents (many of whom went to strictly western residential schools) may not know. The purpose of the curriculum is to make the students “strong like two people” – to give them the skills to succeed in the western world and a firm grounding in the TłìchQ culture as a base for positive personal identity.

The TłìchQ have developed many programs and initiatives to foster cultural pride and community cohesiveness. Recognizing that language is one for the most important signifiers of community, the Dogrib Divisional Board of Education has produced *Tłìcho Tatìi Enihlì- A Dogrib Dictionary*. TłìchQ community and regional organizations have committed to conducting business and community affairs in TłìchQ. All of this has fostered a sort of renaissance of TłìchQ culture

and spurred a region-wide interest in conducting traditional knowledge research. The recovery of the oral tradition is one very significant part of that effort.²³

As stated earlier, the oral tradition is central to the Tłı̨chǫ identity and self-understanding. Mostly unrecorded, except for rare exceptions like Helm's *Tales of the Dogribs*, the oral tradition is free to grow, change and evolve over time. It is responsive to historical changes and historical needs (witness the two different versions of the Wezitsatla story). And it provides a glimpse of the inner workings of both culture and society at a particular moment in time.²⁴ Thus, *Tales of the Dogrib* stands as one of the first attempts to capture a part of the oral tradition at a particular moment in time. It is a personal narration by Vital Thomas a elder from the community of Rae, provided a sense of his "understanding the dynamics of [Tłı̨chǫ] Culture" through his interpretation of a widely shared piece of the oral tradition.²⁵

Although the first attempts at this sort of recovery were launched as part of research programs originating in universities far from the Great Slave Lake, since 1972 there has been a significant upswing in native efforts to recover pieces of the Tłı̨chǫ oral tradition. Since 1998, annual reports on the ongoing project '*Habitat of Dogrib Traditional Territory Place Names as Indicators of Biogeographical Knowledge*'²⁶, produced in part by field research done by Alice Legat of the University of Calgary with the enthusiastic participation of local Tłı̨chǫ elders has vastly aided the project of recovering and preserving the oral traditions of the

²³ *Ibid.* at note 18 at 2-3

²⁴ C. Mcleod, *The oral Histories of Canada's Northern people, Anglo-Canadian Evidence Law, and Canada's Fiduciary Duty to First Nations: Breaking Down the Barriers of the Past* (1992) 30: Alta L.R. at 21 online: Qucklaw

²⁵ Helm, J. *Prophecy and Power Among the Dogrib Indians*, (1994) University of Nebraska Press, at preface.

²⁶ *Ibid.* at note 13.

Tłıchǫ. According to Tom Andrews an archaeologist of the Government of the Northwest Territories, the place-name “relationship between culture and landscape reflect an association of a sociopolitical, economic, and historical facets of [a] society” in the past and today.²⁷ This is of particular interest, in the context of *Węzitsatla* where the land and the people literally become one: “the land and all within it [is] irrevocably tied up with content of a myth or story, just as . . . are the people themselves.” Societies with a rich oral tradition, Andrews argues, transform physical geography into social geography, fusing culture and landscape together, in which “one cannot exist without the other.”²⁸

²⁷ *Ibid.* at note 8, at 5.

²⁸ *Ibid.* at 8.

ORAL TRADITION AND THE LAW

The leading precedent used in the Canadian courts to determine the extent of Aboriginal rights concerning ownership and jurisdiction is *Baker Lake*. In it Mr. Justice Mahoney develops a “test” to be used in the determination of the rights of Aboriginal Peoples which has been applied to the resolution of issues respecting ownership and jurisdiction of lands, this test contains four criteria. These are:²⁹

- “1. that they and their ancestors were members of an organized society
2. that the organized society occupied the specific territory over which they assert Aboriginal title
3. that the occupation was to the exclusion of other organized societies
4. that the occupation was an established fact at the time sovereignty was asserted by England.”

Of these four criteria, the one most critical to the development of the current legal framework for understanding Aboriginal culture is the first. On a reading of it, it would seem to be apparent. After all, if the courts wish to affirm collective rights, they would want to confirm that it was indeed an organized society or a collection of people without some relationship to each other.

However this is not the reading given to this element either by Justice Mahoney or by Justice McEachern, who used *Baker Lake* in his framing of Aboriginal

²⁹ *Ibid.* quoted in *Delgamuukw* (B.C.S.C.) 226

culture in *Delgamuukw*: The legal reading,³⁰ of this clause, the goal is to distinguish between those societies which were sufficiently organized in order for their descendants to successfully assert a cause or ground regarding ownership and jurisdiction. Those societies which are “too primitive” at the time of contact for their descendants to successfully make such an assertion.

“In reading the decisions of the trial judges in both Baker Lake and Delgamuukw, it is clear the judges’ interpretation of the meaning of an organized society derives from the reliance on a 1919 decision of the Privy Council in *Re Southern Rhodesia* to provide precedent”³¹

Such understanding is basic to the underpinnings of *Terra Nullius*, a legal fiction that has been applied in various parts of the world to claim Title by the Crown. While not explicitly used by Canadian Courts, the reasoning continues to justify Crown’s primary assertion to title. Given this interpretation, the story of Wezitsatla would be completely misunderstood and would not be understood as evidence to confirm presence and place and attachment to land. The power of “oral” tradition evidence for determining connection to a location on the land is determinative to the Tłı̨chǫ people. This illustrates that there is a gap between scientific understandings of culture as I have illustrated to a limited degree by June Helm and her understanding of oral tradition and the presumptions about culture used by Canadian court in Aboriginal rights litigation. One relies on the scientific understanding and the other on colonial legal creations and the Courts are too heavily invested in colonial precedent to offer much by way of interpretation of oral evidence.

³⁰ C. Bell, & M. Asch, *Challenging Assumptions: The Impact of Precedent in Aboriginal Rights Litigation* in (Michael Ash (ed) *Aboriginal and Treaty Rights in Canada* (Vancouver, UBC Press, 2002) at 56.

³¹ *Ibid.* at 57.

Oral traditions, *a priori* is proof of organized societies. They contain the teaching of a past generation to the future generation through the process of oral testimony/knowledge to the future generation. They are powerful signifiers of a people and a place, but they are inherently abstract and fungible: they have little or no evidentiary value – or, rather they had little evidentiary value until very recently. The stuff of oral tradition – stories, songs, poetry, the symbolic language of blankets, masks, and the decorative arts – are by their very nature open to broad interpretation. Useful as these things may be for a culture in transition as the Tłı̨chǫ Nation is, they presented (and continue to present) significant challenges when they become the basis for legal proceedings such as federal land claims.^{32 33}

Setting aside the issue of interpretations by courts on what is and is not an organized society, Oral tradition was first recognized as an evidentiary basis for aboriginal rights and titles in *Delgamuukw v. British Columbia* (1997).³⁴ *Delgamuukw* established a new form evidence allowing for the admission of oral history by the elders of a society. It explicitly recognized that most aboriginal societies have never kept written records. Instead, these societies have passed on their understanding of the world and their relation to it – particularly their relation to the land – through oral history in many different forms like stories, myths, or songs.³⁵

Acknowledging that oral history does “not conform precisely with the evidentiary standards” applied in other private law cases, Lamer C.J. quoted

³² *Ibid.* at note 8 at 4.

³³ *Ibid.*

³⁴ The Gitksan and Wet’suw’ten peoples of northern British Columbia sought a declaration from the court affirming their ownership, jurisdiction, and Aboriginal rights over a large portion of B.C. territory.

³⁵ D. Hanna, *Oral Traditions: Practical considerations for communities in Light of the Delgamuukw Decision* (2000) at 2 online < <http://www.delgamuukw.org/research/considerations.pdf> >.

from *R. v. Vanderpeet*³⁶ in *Delgamuukw* asserting the sui generis nature of aboriginal rights and titles, and asserting that the courts would need a new and special approach to aboriginal evidence that would make room for the oral tradition.³⁷

Since *Delgamuukw* the courts have developed a nuanced approach to the treatment of oral evidence in aboriginal claims. Binnie J.J., writing for the majority in *Mitchell v. M.N.R.* (2001),³⁸ asserted that the trial judge must resist the “facile assumptions based on eurocentric traditions of gathering and passing on historical facts.”³⁹

The trial judge, always maintains his or her discretion on the admissibility of evidence, but must keep in mind that the evidence must be useful and reasonably reliable. Aboriginal people claiming the rights or titles backed by oral tradition must first offer evidence of the significance of the rights or titles being claimed to ancestral practice and second must “provide an aboriginal perspective on the right claimed”. Only by satisfying these criteria can oral tradition be deemed “useful” evidence.⁴⁰ Reasonable reliability is both more concrete and less: it asks simply if a witness is “a reasonably reliable source of the particular people’s history?”⁴¹ Unfortunately this is problematic and falls into a kind of eurocentric blindness when using unscientific concepts which would be seen as snares by the highly trained Tłıchǫ hunters as discussed earlier.

Even having satisfied these tests, the evidentiary value of oral tradition must, according to McLachlin C.J. in *Mitchell*, be examined by the trial judge as carefully

³⁶ [1996] 4 C.N.L.R. [hereinafter *Vanderpeet*].

³⁷ J. Borrows, *Listening for Change: The Courts and Oral Tradition* (date unknown) at 27 online: < <http://www.delgamuukw.org/research/oralhistory.pdf> >

³⁸ [2001] 1 S.C.R. 911, [hereinafter *Mitchell*].

³⁹ *Ibid.* at Introduction.

⁴⁰ *Ibid.* at para 31 & 32.

⁴¹ *Ibid.* at para 33.

as any other evidence, and “sparse, doubtful and equivocal evidence cannot serve as the foundation for a successful claim”⁴²

In short, while *Delgamuukw* cleared the way for the admission of the oral tradition as evidence in both title and rights claims, this evidence – like all evidence – is far from unimpeachable. The problems with the criteria set out in *Baker Lake* haunt it however and the court’s claim to be the authority of deciding which testimony is relevant and which authorities are reliable are seen as highly offensive and presumptuous by some Native peoples particularly elders who are trained to foremost maintain the integrity of their stories as a sacred trust. Further, the Court’s preference for general pronouncements rather than specific relief are seen as half measures left to be fought out in lower courts and destined to stall many land claims cases in the process.

It is not difficult to see the current state of the interpretation of oral tradition could undermine or delay a land claim or rights case. In the case of *Wezitsatla* story shared here, for instance, the competing versions of the story could themselves disqualify that piece of the oral tradition because of a lack of clear authority – even though the core elements of the stories are basically the same. What if these two stories originated with two different tribal groups, both of whom are using the story as basis for a claim on the same piece of land? It remains to be seen whether such cases will emerge over time and how the courts will handle them.

⁴² *Ibid.* at para 51 & 39.

Chapter 6

CONCLUSION

Admitting oral evidence is one thing. My argument is it isn't enough to allow oral evidence in the court but not making space for it. The frame work used in cases like *Re Southern Rhodesia* is plainly wrong, inappropriate and biased. It used a framework for understanding culture that was reasonable at the time but it clearly is not now. To make oral evidence credible at all in the judicial system, the gap between scientific understanding, modern anthropological methods and courts reliance on precedents needs to be narrowed. As a first, the courts need to adopt an approach that better reflects contemporary knowledge about the nature of social groups. This approach would mean "adopting the proposition that all human beings, including those who lived in north America prior to the assertion of sovereignty by Britain, live in societies and that societies are always organized with respect to all aspects of social life including, specifically, the ownership of land and jurisdiction over territory and society members"⁴³

The oral tradition is a powerful signifier of identity for the Tłı̨ch̨ Nation and for Aboriginal peoples in general. It provides them with a sense of connection to both the land and the past. It provides them with a sense of order and a shared history as an organized people and society around which both community and culture coalesce. Generations of forced acculturation have damaged Native cultures and Native peoples profoundly, and the recovery of their past and traditions has been a slow, but ultimately empowering process. The fact that the Tłı̨ch̨ are a highly organized society has sustained them and strengthen them to

adapt and to set goals that include self-government which they have always had. Education and research initiative such as those launched by the Elders of the Tłıchǫ Nation show great promise for creating an even more vibrant cultural communities, for recovering language and cultural artifacts that were on the verge of extinction less than thirty years ago.

The next step, is already underway. The conclusion of the Final Agreement in 2003, and the slow legislative process that will eventually create a sovereign Tłıchǫ Nation represents a great step forward in the recovery of Native rights and titles in Canada. This would not have been possible had oral history and the oral tradition not found their place in the evidentiary process.

The road ahead is not without bumps. Michael Jackson a professor of Law at University of British Columbia asserts that the courts are unresponsive to the aboriginal desire to make the law responsive to their own cultural imperatives – to make it fall in line with traditions passed from one generation to the next. The court, Jackson asserts, “denies native people the right to be contemporary, the right to develop their indigenous systems of government and decision making to cope with the realities of contemporary life, with acknowledging their own demise as distinctively native societies.”⁴³ It will be interesting to see to what extent the advisory committee that is a key part of the Tłıchǫ Nation’s Final Agreement will be allowed to make government responsive to tradition and vice versa. As with the courts, the Tłıchǫ will develop criteria far different than what was proposed in *Baker Lake* and hence *Delgamuukw* to guide its development and direction. To be culturally relevant, Tłıchǫ law making will transfer stories like

⁴³Ibid. at note 29 at 73.

⁴⁴ M. Jackson, *In search of the Pathways to Justice: Alternative dispute resolution in Aboriginal Communities*, (1992) U.B.C.L. Rev. at para 103.

Wezitsatla into a codified language. The danger is losing fluidity. The advantage of oral transmission is that each generation that “hears” the stories have it reinterpreted to them in ways that the new generation can understand. The elders play a vital role in this re-transmission and so their participation in the law making projects of the community through self-government is very important. They are clearly on the ground creators of new relationships not only to the land but to each other.

The courts need to reexamine how to build in space for new legal precedent and oral traditions in defining these relationships and inevitable tensions that will result from their creation. The *Wezitsatla* story was presented to demonstrate some of the complex issues of relationships in a general way for courts and for aboriginal people.

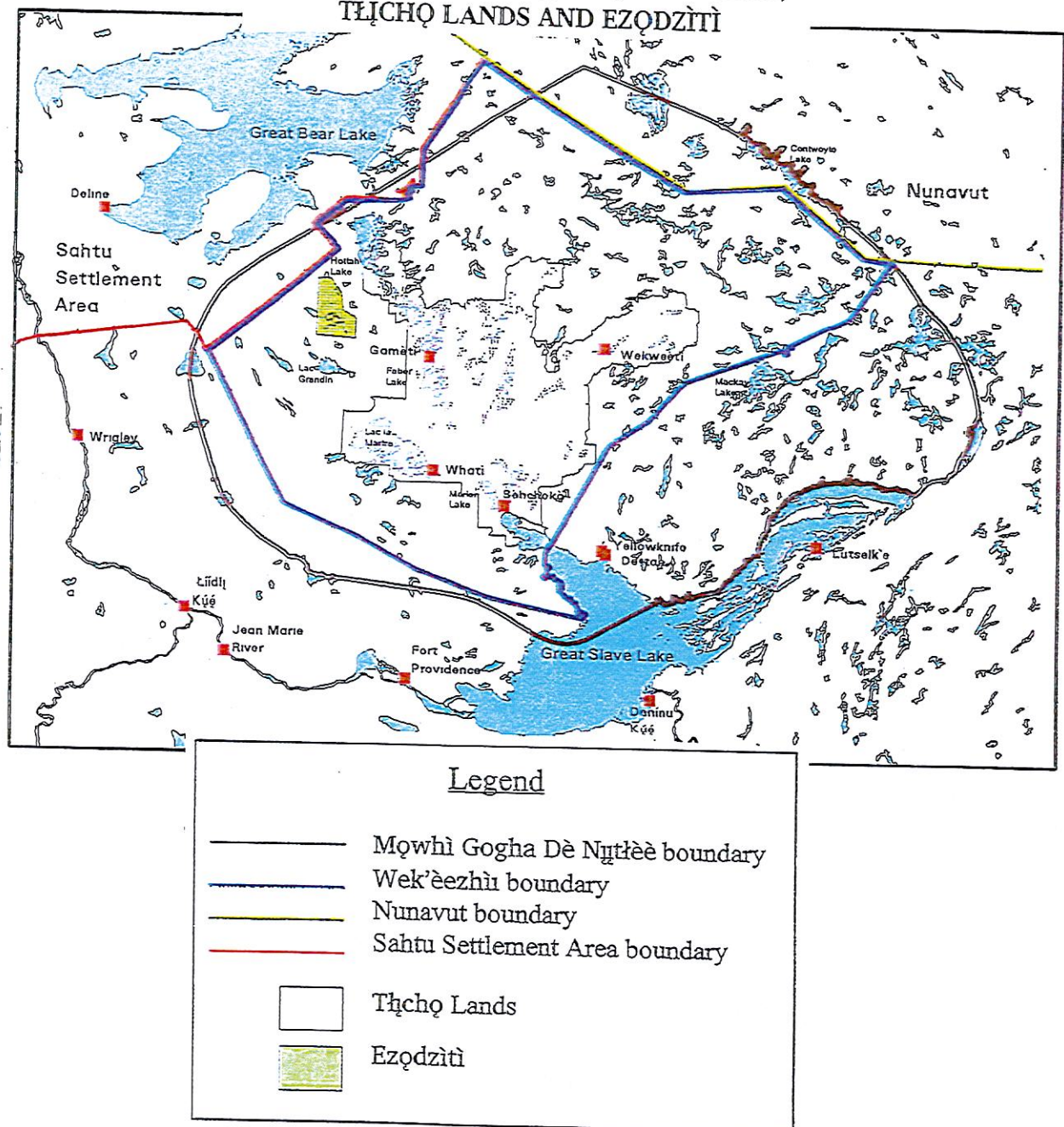
On a Personal Note

I am Giselle Marion, a Tłıchǫ, born in a small town of Rae/ Edzo in the Northwest Territories. I have the benefit of both worlds in my life, and by my writing a version of *The Story Book of Wezitsatla*, it is my sincerest hope of demonstrating the fusion of two worlds once spoken by Chief Jimmy Bruneau.

If you listen closely, you can hear a grandmother, grandfather, uncle, aunt, mother or father speaking softly to a child. Passing on wisdom, knowledge, love of their ancestors, such learning will not allow it to die.

PPENDIX A: MAP⁴⁵

MQWHÌ GOGHA DÈ NITLÈÈ, WEK'ÈEZHÌ,
TÌCHQ LANDS AND EZQDZÌTÌ



⁴⁵ Land Claims and Self-Government Agreement Among the Tìchq and the Government of the Northwest Territories and Government of Canada 2003) Tìchq Agreement at 19

APPENDIX B: Original Story of *Wezitsatla*

The Original Story first recorded in the summer of 1962, by June Helm, narrated by Vital Thomas.

HOW THE BARRENS CAME TO BE AND WENT-INSIDE-MOUNTAIN GOT ITS NAME

There is a mountain across from Karelín [at the mouth of Marian River]. We Indians call it *Wezitsatla* – “Got-in-the-Mountain.” There’s supposed to be somebody in there. This is how it happened.

Once there was a great medicine man. One day he went hunting and left his wife behind, alone in the camp. But a young fellow was out hunting and he found that woman alone. The young fellow wanted the woman to go away with him. Finally the woman said, “I’m scared to do that because my husband is a great medicine man. There is no way to hide from him. But I’ll go with you anyway.”

So the young fellow took the woman with him. When the husband came home and found his wife was not there he started to run about, trying to find out which way she went. The young man and the woman had headed out toward where the Barrens are now. In those days there were no Barrens, just bush country. But the husband, looking for them, got so mad that he started a fire to burn the bush down so that he could find them. And that how the barrens were made. Before them the bush went right straight through to the Eskimo.

The young man and woman ran from the fire back toward Marian lake. When they got there they climbed up on the mountain. The young man lifted up a rock just like you’d lift a tent flap, and he told the woman to go inside. Then he followed her and he closed the rock back again.

When the medicine man came he could hear them talking, so he knew they were inside the mountain. He started tearing the rocks out of the ground, but as he would lift one rock from one place he would hear them talking someplace else. Each time he lifted a rock they were in some other part of the mountain. Finally he got tired. He still couldn’t reach them, so he said, “So long as the world goes on you are never coming to the surface of the ground again” And he left them.

How the Hozii (Barrenlands) came to be

and

how the Wezitsatla (Went-Inside-Mountain)
got its name.

Written and illustrated by Giselle M. Marion
Original Narration by Vital Thomas, recorded by June Helm